

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SALVATORE PULICE,

: Index No.:

Petitioner,

-against-

: **VERIFIED PETITION**

CITY OF NEW YORK,

Respondent.
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SAMUEL C. DEPAOLA, ESQ., an attorney duly admitted to practice law in the courts of the State of New York, affirms the truth of the following under the penalties of perjury:

1. I am a partner with the law firm of **SIM & DEPAOLA, LLP**, attorneys for the Petitioner, Moises Velez, in the above-captioned matter, and am fully familiar with the facts and circumstances herein, based upon my investigation and conversations with my client(s).
2. I submit this PETITION in support of the instant ORDER TO SHOW CAUSE for an Order granting Petitioner leave to serve late notices of claim, upon the Respondent, **CITY OF NEW YORK**, or, alternatively, to deem their respective proposed notices of claim, collectively annexed hereto as **Exhibit A**, timely served *nunc pro tunc*.
3. Petitioner asserts that he was falsely arrested, falsely imprisoned, illegally searched and seized and had multiple assault and batteries committed to his person on, or about, October 4, 2018, at approximately 1:00 PM, in the vicinity of Father Capodanno Blvd and Greeley Ave County of Richmond, State of New York, by police officers of the New York City Police Department ("NYPD"). A printout of the pending criminal court information is annexed hereto and incorporated by reference, as **Exhibit B**.

4. Petitioner requests that they be permitted to file a late Notice of Claim. A copy of the Proposed Notice of Claim is annexed hereto and incorporated by reference as **Exhibit A**.

5. Moreover, it should be noted that petitioner intends to file analogous Federal claims under 42 U.S.C. Section 1983, which do not have a notice of claim requirement and are subject to a (3) year statute of limitations. See Owens v. Okure, 109 S. Ct. 573 (1989); see also Feuer v. NYCHHC, 170 Misc.2d 838 (1996) citing Felder v. Casey, 487 U.S. 131 (1988); Welch v. State, 286 A.D.2d 496; Zwecker v. Clinch, 279 A.D.2d 572 (2d Dep't 2001); Lopez v. Shaughnessey, 260 A.D.2d 551; Corvetti v. Lake Pleasant, 227 A.D.2d 821; Lui v. New York City Police Dept., 216 A.D.2d 67; Lawles v. Buffalo, 177 A.D.2d 1007 (4th Dep't 1991); Omni Group Farms, Inc. v. Cayuga, 178 A.D.2d 977 (4th Dep't 1991).

6. As will be shown, *infra*, this application to allow the Petitioner to serve the Proposed Notice of Claim should be granted because respondent acquired actual notice of the essential facts constituting the state law claims within ninety (90) days of their accrual. Also, there would be no prejudice to the respondent herein, as respondent would undoubtedly move to stay any civil proceedings until petitioner's underlying criminal case has been resolved, and the Petitioner has reasonable excuses for failing to serve a timely notice of claim due to the pendency of his criminal case and his present incarceration on Rikers Island.

I. THE RESPONDENT CITY OF NEW YORK HAD ACTUAL KNOWLEDGE OF THE ESSENTIAL FACTS OF THE NY CLAIMS

7. New York GML Section 50-e (5), reads, in pertinent part, as follows:

Upon application, the court, in its discretion, may extend the time to serve a notice of claim specified in paragraph (a) of subdivision one.

The extension shall not exceed the time limited for the commencement of an action by the claimant against the public corporation. In determining whether to grant the

extension, the court shall consider, in particular, *whether the public corporation or its attorney or its insurance carrier acquired actual knowledge of the essential facts constituting the claim within the time specified in subdivision one or within a reasonable time thereafter.*

The court shall also consider all other relevant facts and circumstances, including...*whether the delay in serving the notice of claim substantially prejudiced the public corporation in maintaining its defense on the merits.* GML 50-e (emphasis added).

8. The courts have an inherent power, pursuant to New York GML Section 50-e, to grant leave to serve a late notice of claim. See Cohen v. Pearl River, 51 N.Y.2d 256 (1980). In Beary v. City of Rye, 44 N.Y.2d 398 (1978), the Court of Appeals explained that the standards of General Municipal Law Section 50-e were modified, so that the grounds upon which a court may allow a late notice of claim were expanded, and the time for serving a notice of claim was lengthened.

9. As can be seen in **Exhibit B**, petitioner was arrested on October 4, 2018, at approximately 1:00 p.m., in the vicinity of Father Capodanno Blvd and Greeley Ave, within the County of Richmond, City and State of New York. Petitioner was illegally searched and seized by numerous officers in the employ of the New York City Police Department, hereinafter referred to as the “NYPD,” who had no probable cause to do so. Petitioner had not committed any crime or violation of the law. NYPD officers unlawfully arrested Petitioner, despite Petitioner’s complete innocence of all criminal charges. Petitioner had multiple assaults and batteries committed to his person, including, but not limited to being violently tackled, slammed to the ground and beaten while already in handcuffs that were affixed in an excessively tight fashion. He was then taken to a local NYPD Precinct, where he was criminally processed. Claimant was also taken to Staten Island University Hospital, while still in NYPD custody, where he received medical attention for his myriad physical injuries in the presence of numerous NYPD officers. Claimant was then arraigned and had bail set. Unable to make bail, petitioner

was removed to Rikers Island Correctional Facility, where he remained until he was able to post bail on June 11, 2019. Thus, respondent, **CITY OF NEW YORK**, had timely actual knowledge of the essential facts constituting each of the state law claims now asserted by petitioner.

10. The First and Second Departments have consistently held that in cases involving civil claims for false arrest or imprisonment, in which the NYPD and District Attorney's Office investigated the alleged crimes, "knowledge of the essential facts constituting the claims within the statutory period can be imputed to the City." Grullon v. City of New York, 222 A.D.2d 257, 258 (1st Dep't 1985), *citing* Taturn v. City of New York, 161 A.D. 580, 581 (2d Dep't 1990); *see also* Justhiano v. NYCHA, 191 A.D. 252 (1st Dep't 1993); Matter of Rlese v. County of Nassau, 141 A.D.2d 649 (2d Dep't 1988); Winzel v. County of Suffolk, 92 A.D.2d 545 (2d Dep't 1983); Ansaldo v. City of New York, 92 A.D.2d 557 (2d Dep't 1983).

11. Additionally, where a municipal respondent possesses records, which set forth the essential facts constituting a claim, courts generally hold that permission to serve a late notice of claim should be freely granted. *See* Rodriguez v. NYCH&HC, 270 A.D.2d 110 (1st Dep't 2000); Melendez v. City of New York, 245 A.D.2d 564 (2d Dep't 1997) (reversing the trial court's denial of claimant's application to serve a late notice of claim); Guzman v. County of Westchester, 208 A.D.2d 925 (2nd Dept. 1994); Montalvo v. Town of Harrison, 151 A.D.2d 652 (2d Dep't 1989); Reisse v. County of Nassau, 141 A.D.2d 649 (2d Dep't 1989); *see generally* Tatum v. City of New York, 161 A.D.2d 580 (2d Dep't 1990).

12. Here, the respondent, **CITY OF NEW YORK**, had knowledge of the essential facts since the NYPD, its employees and agents, were present at the scene of the incident and, in fact, actively perpetrated the unlawful actions that now form the basis for Petitioner's state law claims. Petitioner was even medically treated for his injuries in the presence of the very same NYPD officers who

caused his substantial injuries. Pursuant to proper police procedure, the officers involved in Petitioner's arrests were required to maintain and utilize memo books and spiral notebooks to contemporaneously record factual details, especially those related to any probable cause determination. The officers were further required to generate detailed complaint follow-up reports ("DD5s") that are used to memorialize the factual circumstances particular to each case. The arresting officer must then provide all facts that may be relevant to the existence of probable cause to the District Attorney's office, so that the District Attorney's Office may properly evaluate the merits of a potential criminal prosecution and draft an accusatory instrument. Here, all but the filing of an accusatory instrument occurred because Petitioner was arrested, detained, and processed in this matter. Here, the criminal charges against Petitioner have been prosecuted for over fourteen (14) months and continue to be prosecuted. Petitioner was unable to find an attorney to represent him in this matter, until contacting your affiant's office.

13. Moreover, respondent has investigated the allegations that form the basis of the state law claims and have been in possession of records that adequately set forth the relevant facts, including detailed police reports and files maintained by the District Attorney's Office. Thus, respondent is in possession of records that provide it with actual knowledge of the essential facts of constituting the state law claims, which were obtained through the City's own investigation, and which were created by its own employees and agents. Therefore, respondent is already in possession ample information, which may also be used to refresh the recollections of any individuals involved.

II. RESPONDENT WOULD NOT SUFFER ANY PREJUDICE

14. Petitioner's delay in filing timely notices of claim does not substantially prejudice the Respondent's ability to defend the state law claims on the merits. In the Matter of Gerzel v. New

York City Health & Hosps. Corp., 117 A.D.2d 549 (1st Dept. 1986), the court held that “[t]he only legitimate purpose served by [NY Municipal Law] Section 50(e) is to protect the public corporation against spurious claims and to assure it an adequate opportunity to explore the merits of the claim, while information is still readily available.” Id., at 550 *quoting* Teresta v. City of New York, 304 N.Y. 440, 443. As the criminal charges against petitioner are still pending, the NYPD officers involved are required to still be in possession of all information relating to petitioner’s claims and to be able to recall the incident in great detail. Additionally, in Hayden v. Incorporated Village of Hempstead, 103 A.D.2d 765 (2nd Dept. 1984), the Second Department held that the mere passage of time does not constitute substantial prejudice. See also Holmes v. City of New York, 189 A.D.2d 676 (1st Dept. 1993 (holding that possession of records by the municipal corporation constituted actual notice and defeated a claim of prejudice by the municipality).

15. It is respectfully submitted that this case is precisely the type of situation which the legislature envisioned when it empowered the court with the discretion to permit a late filing of a notice of claim to a public corporation. Having suffered through the indignity of a false arrest and imprisonment, with all of its attendant stress, expense and humiliation, it would certainly be highly prejudicial to the Petitioner to be denied in his application to submit the Proposed Notice of Claim. Also, should the instant application be denied, the City will still be defending Petitioner’s federal claims, which will require the same expenditure of time and resources.

16. The Petitioner’s delay in filing a timely notice of claim in this case does not substantially prejudice the City of New York’s ability to defend Petitioner’s claims on the merits. The Court of Appeals, in its reversal of a lower court’s denial of an application for leave to serve a late notice of claim, held that, although, the initial burden to demonstrate a lack of prejudice rests with the

petitioner, “such a showing need not be extensive, but the petitioner must present some evidence or plausible argument that supports a finding of no substantial prejudice.” Newcomb v. Middle Country Central School District, 28 N.Y.3d 455 (2016). The Court of Appeals further held that once there has been an initial showing regarding the lack of substantial prejudice toward the public corporation or municipality, the public corporation or municipality is required “to rebut that showing with particularized evidence.” Id. It is anticipated that respondent, **CITY OF NEW YORK**, will be unable to make such a showing, due to the clear lack of any actual prejudice.

17. Thus, respondent, **CITY OF NEW YORK**, would not be unduly prejudiced by being compelled to defend a case, in which the underlying statute of limitations for the state law claims, one-year-and-ninety-days, has not yet run. See Sarjoo v. NYC H&HC, 270 A.D.2d 110 (1st Dep’t 2000) (noting that a court maintains discretionary power to grant permission to serve a late notice of claim, if the application is filed prior to the expiration of the applicable statute of limitations).

III. CLAIMANT HAS A REASONABLE EXCUSE FOR THE DELAY

18. A reasonable excuse for the delay in filing a timely notice of claim should be presented by a proposed claimant in an application for leave to serve a late notice of claim, but is not dispositive, or even a prerequisite. See Reisse v. County of Nassau, 141 A.D.2d 649 (2nd Dept. 1988) (stating that all relevant facts must be considered despite the fact that the reasonableness of the petitioner’s excuse of the delay is debatable); Matter of Gerzel v. New York City Health & Hospital Corp., 117 A.D.2d 549 (1st Dept. 1986) (stating that the claimant’s failure to present a more reasonable explanation is without significance given the City’s failure to show substantial prejudice).

19. Here, the Petitioner is still contesting the false charges against him and was incarcerated until about June 11, 2019, when he was able to make bail. As Petitioner was incarcerated and

contesting the spurious criminal charges levied against him, he was understandably preoccupied with achieving vindication and was unaware of the various time limitations applicable to civil actions against the City of New York. Petitioner knew only that he was charged with crimes of which he is innocent and that he was subjected to numerous assaults and batteries to his person. Petitioner contacted various attorneys regarding legal representation, but was unable to retain one, until contacting your affiant's office, who regularly litigates similar claims, and who was able to recognize the merits of the claims.

20. Simply stated, Respondent, **CITY OF NEW YORK**, had notice of the essential facts underlying Petitioner's state law claims within the statutory, ninety (90) day, limitations period, as the City had actual knowledge of these facts from their own investigative efforts and through the actions and records of their own employees and agents within the NYPD and the District Attorney's Office. The City will not be prejudiced in the slightest degree, because the City would seek to stay the civil case in the event that it had been brought in a timely fashion, which they have done in every other instance when a claimant's underlying criminal case has yet to be resolved. Petitioner has also provided a valid excuse due to his lengthy incarceration and the fact that his criminal case is still pending. Conversely, if this application is denied, it will be the Petitioner, who is substantially prejudiced, as such denial would procedurally preclude him from commencing a substantively meritorious set of state law claims.

WHEREFORE, it is respectfully requested that the within application be **GRANTED**, in all respects, and Petitioner's Proposed Notice of Claim, as annexed hereto, be deemed timely served, upon the City of New York, *nunc pro tunc*, as to all the claims set forth therein, and for such other and further relief as to this Court may deem just and proper.

Dated: Bayside, New York
January 1, 2020

Respectfully submitted,



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